

no Authority, but that of the Sovereign. The Monarch, or the Sovereign Assembly only hath immediate Authority from God, to teach and instruct the people; and no man but the Sovereign, receiveth his power *Dei gratiâ* simply; that is to say, from the favour of none but God: All other, receive theirs from the favour and providence of God, and their Sovereigns; as in a Monarchy *Dei gratiâ & Regis*; or *Dei providentiâ & voluntate Regis*.

They also to whom Jurisdiction is given, are Publique Ministers. For in their Seats of Justice they represent the person of the Sovereign; and their Sentence, is his Sentence; For (as hath been before declared) all Judicature is essentially annexed to the Sovereignty; and therefore all other Judges are but Ministers of him, or them that have the Sovereign Power. And as Controversies are of two sorts, namely of *Fact* and of *Law*; so are Judgements, some of *Fact*, some of *Law*: And consequently in the same controversy, there may be two Judges, one of *Fact*, another of *Law*.

For Judicature.

And in both these controversies, there may arise a controversy between the party Judged, and the Judge; which because they be both Subjects to the Sovereign, ought in Equity to be Judged by men agreed on by consent of both; for no man can be Judge in his own cause. But the Sovereign is already agreed on for Judge by them both, and is therefore either to heare the Cause, and determine it himself, or appoint for Judge such as they shall both agree on. And this agreement is then understood to be made between them divers wayes; as first, if the Defendant be allowed to except against such of his Judges, whose interest maketh him suspect them, (for as to the Complaynant he hath already chosen his own Judge,) those which he excepteth not against, are Judges he himself agrees on. Secondly, if he appeale to any other Judge, he can appeale no further; for his appeale is his choice. Thirdly, if he appeale to the Sovereign himself, and he by himself, or by Delegates which the parties shall agree on, give Sentence; that Sentence is finall: for the Defendant is Judged by his own Judges, that is to say, by himself.

These properties of just and rationall Judicature considered, I cannot forbear to observe the excellent constitution of the Courts of Justice, established both for Common, and also for Publique Pleas in *England*. By Common Pleas, I meane those, where both the Complaynant and Defendant are Subjects: and by Publique, (which are also called Pleas of the Crown) those, where the Complaynant is the Sovereign. For whereas there were two orders of men, whereof one was Lords, the other Commons; The Lords had this Priviledge, to have for Judges in all Capitall crimes, none but Lords; and of them, as many as would be present; which being ever acknowledged as a Priviledge of favour, their Judges were none but such as they had themselves desired. And in all controversies, every Subject (as also in civill controversies the Lords) had for Judges, men of the Country where the matter in controversy lay; against which he might make his exceptions, till at last twelve